

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUOE061309: RALPH JIMENEZ vs UNIVERSAL PROTECTION SERVICE, LP

08/25/2026 in Department 21

Motion for Leave to to file First Amended Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Ralph Jimenez’s Motion for Leave to File First Amended Complaint (opposed)

Tentative Ruling:

Plaintiff’s Motion to leave to file a First Amended Complaint to refine existing facts/theories and to add two new FEHA causes of action is GRANTED.

Plaintiff shall have 20 days to file and serve. Defendant’s motion to compel arbitration, currently set for hearing on September 4, 2026, along with the CMC, are continued to October 12, 2026, at 8:30 a.m. in this department. Defendant may wish to withdraw the pending motion to compel arbitration. Defendant shall not be deemed to have waived arbitration through any delay caused by the filing of the First Amended Complaint.

Plaintiff to give notice within two (2) court days.

Discussion:

A plaintiff may amend her complaint “once without leave of the court” as a matter of law, and thereafter as the trial court permits in its discretion “upon any terms as may be just.” (CCP §473(a)(1).) Such amendments generally may occur at any time before or after commencement of trial, in the furtherance of justice so long as the amendments do not raise new issues against which the opposing party has had no opportunity to defend. *North Coast Village Condominium Association v. Phillips* (2023) 94 Cal.App.5th 866, 881; *McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909; *Singh v. Southland Stone, U.S.A., Inc.* (2010) 186 Cal.App.4th 338, 354. A motion for leave to amend can even be made while a motion to compel arbitration is pending, unless of

course the party seeking arbitration has succeeded on a motion to stay under CCP §1281.4. Nothing of the sort has occurred here.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Motions for leave are to follow the regular notice requirements contained in CCP §1005(b). Pursuant to California Rules of Court, Rule 3.1324, the moving party must: (1) specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and (2) include with the moving papers a copy of the proposed amended pleading and a declaration specifying the effect of the amendment(s), why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request was not made earlier. The declaration from Attorney Rosenbaum covers all the required elements, something which defense counsel does not dispute. Thus, procedurally the motion for leave to amend is proper.

Defendant contends that the motion for leave to amend should be denied on the merits because the proffered amendment is a pretext for avoiding arbitration. According to defendant, this case has no “real” sexual harassment component, and that plaintiff is seeking leave to amend to add a sexual harassment component to gain shelter under the new Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (EFAA) (9 U.S.C. §§ 401–402). It is true that this amendment to the FAA now renders entire arbitration agreements invalid *ab initio* if any claim within plaintiff’s lawsuit relates to conduct that is alleged to constitute sexual harassment under state or federal law. (See *Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 801-803; *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 577-578.) However, the fact that plaintiff may not be able to *establish* a cognizable claim for gender-based harassment under FEHA does not render the motion for leave to amend a “sham” or pretext as a matter of law. Ordinarily, a court will not consider the validity of a proposed amendment in deciding whether to grant leave to amend, and may not condition leave upon the submission of evidence substantiating the new claim(s). (*Sanai v. Saltz* (2009) 170 Cal.App.4th 746, 769-770.) Trial courts do have discretion to deny such motions only where the new claim is, *on its face*, fatally flawed or a sham. (See *Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 912; *State ex rel Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412; *Edwards v. Superior Court* (2001) 93 Cal.App.4th 172, 180; *Yee v. Mobilehome Park Rental Review Board* (1998) 62 Cal.App.4th 1409, 1429.)

This is not a sham proposal on its face. A sham occurs when a party pleads facts which *materially* differ from facts contained in an earlier pleading without providing a satisfactory explanation for the change. Here, Plaintiff’s proffer – that he suffered an adverse employment action due to a rumor that he was frequenting prostitutes in Mexico – is something that was already in the lawsuit from the beginning. In the original iteration of the operative pleading, plaintiff alleged that he “was summarily terminated after being told that management had heard a rumor that he had visited prostitutes in Mexico, an entirely false accusation that was never investigated or substantiated.” (See Complaint 2:11-13.) In fact, when defense counsel sought a stipulation to refer the case to arbitration, plaintiff’s counsel responded that the lawsuit was already subject to the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act because sexual harassment was alleged (albeit not pled as a cause of action). (See Lindsey-Doyle Decl Para 5.) While it is true that plaintiff alleged originally that the first time the “prostitute thing” came up was in the meeting where he was terminated (effectively negating any pervasive

pattern of harassment tied to the “prostitute thing”), this is an issue better addressed in the motion to compel arbitration, or a demurrer to the First Amended Complaint once filed.

Motions for leave to amend a pleading are directed to the sound discretion of the court. (CCP §§ 473(a)(1) and 576.) This discretion, however, is to be exercised liberally in favor of allowing amendments. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101-1102.) Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where amendment would require delaying the trial, resulting in loss of critical evidence, or significant added litigation burden/costs. (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486-488.) That is not the case here. Plaintiff’s amendment *may* cause the defense to revisit the timing of the pending motion to compel arbitration but does not strip defendant of its right to eventually have the matter referred to arbitration if the FEHA claims are not well-pled. Presently they are barren, but plaintiff will be given leave and perhaps the actual version filed will be stronger.

Motion to leave to file a First Amended Complaint to refine existing facts/theories and to add two new FEHA causes of action is GRANTED. Plaintiff shall have 20 days to file and serve.

Plaintiff to give notice within two (2) court days.